| STANDARD OPERATING PROCEDURE | G-4600 |
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| | SARPY COUNTY<br>SHERIFF'S OFFICE<br>PAPILLION * NEBRASKA<br>**GREG LONDON**<br>**SHERIFF** | DATE ISSUED<br>**09/15/23** | DATE REVISED | DATE REVIEWED<br>02/02/25 |
| | | APPROVED:<br>*GREG LONDON* | | |

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| CHAPTER TITLE<br>GENERAL | RESOURCES |
| SUBJECT<br>AUTOMATIC LICENSE PLATE READERS (ALPR) | CROSS REFERENCE<br>NRS 60-3202 – ALPR Terms, Defined, |

## I. Purpose:

The purpose of this policy is to establish guidelines for use of automated license plate readers. This shall include guidelines to comply with the Nebraska Automatic License Plate Reader Privacy Act.

## II. Policy:

License Plate Reader (LPR) technology, also known as License Plate Recognition, provides automated detection of license plates. The LPR is used by the Sarpy County Sheriff's Office to convert data associated with vehicle license plates and use it for official law enforcement purposes. LPR's play an increasingly important role in public safety by assisting with the location of stolen vehicles, stolen plates, missing persons, amber alerts, and child abductions while enhancing Deputy productivity, Deputy effectiveness, and citizen and Deputy safety. It may also be used to gather information related to active warrants, homeland security, electronic surveillance, suspect interdiction, and stolen property recovery.

## III. Definitions:

**A. Automatic License Plate Reader:** One or more mobile or fixed automated high-speed cameras used in combination with computer algorithms to convert images of license plates into computer-readable data.

**B. Captured Data:** Global positioning system coordinates, date and time information, photographs, license plate numbers, and any other data captured by or derived from any automatic license plate reader system.

**C. Government Entity:** Governmental entity means a department or agency of this state, the federal government, another state, or a political subdivision or an individual acting for or as an agent of any of such entities.

D. **Secured Area:** A place, enclosed by clear boundaries, to which access is limited and not open to the public and into which entry is only obtainable through specific access-control points.

E. **ALPR Operator:** Trained Sarpy County Sheriff's Office Deputies and Crime Analysts who may utilize ALPR system/equipment. ALPR operators may be assigned to any position within the Sarpy County Sheriff's Office, and the ALPR Administrator may order the deployment of the ALPR system for use in various efforts**.**

F. **ALPR ADMINISTRATOR:** The Investigations Division Assistant Commander and Crime Analyst shall be designated as the Administrators for purposes of this policy.

G. **HOT LIST:** License plate numbers of stolen cars, vehicles owned by persons of interest, and vehicles associated with AMBER Alerts that are regularly added to "hot lists" circulated among law enforcement agencies. Hot list information can come from a variety of sources, including stolen vehicle information from the National Insurance Crime Bureau and the National Crime Information Center (NCIC), as well as national AMBER Alerts and Department of Homeland Security watch lists. Departments of motor vehicles can provide lists of expired registration tags, and law enforcement agencies can interface their own, locally compiled hot lists to the ALPR system. These lists serve a Deputy safety function as well as an investigatory purpose. In addition to agency supported hot lists, users may also manually add license plate numbers to hot lists in order to be alerted if and when a vehicle license plate of interest is "read" by the ALPR system.

H. **Vehicles of Interest:** Including, but not limited to vehicles which are reported as stolen, display stolen license plates or tags, vehicles linked to missing and/or wanted persons and vehicles flagged by the DMV or law enforcement agencies.

I. **ALERT:** A visual and/or auditory notice that is triggered when the ALPR system receives a potential "hit" on a license plate and as further defined in Neb. Rev. Stat. 60-3202 as may be amended

J. **HIT:** Alert from the ALPR system that a scanned license plate number may be in the National Crime Information Center (NCIC) or other law enforcement database for a specific reason including, but not limited to, being related to a stolen car, wanted person, missing person, domestic violations, protective order, or terrorist related activity.

## IV. Procedure:

### A. Administration

1. The ALPR technology, also known as License Plate Recognition (LPR), allows for the automated detection of license plates along with the vehicle make, model, color, and unique identifiers through the Sarpy County Sheriff's Office ALPR system and the vendor's vehicle identification technology.

2. The technology is used by the Sarpy County Sheriff's Office to convert data associated with vehicle license plates and vehicle descriptions for official law enforcement purposes including identifying stolen or wanted vehicles, stolen license plates, and missing persons. It may also be used to gather information related to active warrants, homeland security, electronic surveillance, suspect interdiction, and stolen property recovery.

3. All installation and maintenance of ALPR equipment shall be the responsibility of the vendor in partnership with the ALPR Administrator and designated city staff. ALPR data retention and access shall be managed by the ALPR Administrator.

**B. ALPR Administrator**

1. The Investigations Division Assistant Commander is responsible for the administrative oversight of ALPR system operations including the following:

   **a)** Establishing protocols for access and retention of ALPR data and associated media files;

   **b)** Establishing protocols to preserve and document ALPR reads and "alerts" or "hits" that are acted on in the field or associated with investigations or prosecutions;

   **c)** Establishing protocols to ensure the security and integrity of data captured, stored, and/or retained by the ALPR system;

   **d)** Ensuring the proper training of the personnel approved to operate the ALPR system;

   **e)** Maintaining records identifying approved ALPR deployments and documenting their results, including appropriate documentation of significant incidents and arrests that are related to ALPR usage and complying with State Statute;

   **f)** Authorizing any requests for ALPR systems use or data access according to the policies and guidelines of the Sheriff's Office;

   **g)** Ensuring that the most current Sheriff's Office ALPR Policy is posted on the Office's Official public web page.

**h)** Ensure that all statutory reporting and public disclosure requirements regarding ALPR system use are met. The following information, if captured by the ALPR must be included in the annual Nebraska Crime Commission report:

**(1)** The names of each list against which captured plate data was checked, the number of confirmed matches, and the number of matches that upon further investigation did not correlate to an alert; and

**(2)** The number of manually entered license plate numbers for investigative purposes, the number of confirmed matches, and the number of matches that upon further investigation did not correlate to an alert.

**i)** Designating and training personnel who shall check equipment on a regular basis to ensure functionality and camera alignment. Any equipment that falls outside expected functionality shall be removed from service until deficiencies have been corrected;

**j)** Ensuring that ALPR systems repairs, hardware or software, shall be made by agency authorized sources;

**k)** Monitoring License Plate Reader System Usage;

**l)** Ensuring that ALPR operation and access to ALPR collected data shall be for official agency purposes only;

**m)** Ensuring that only users who have been properly trained in the use and operational protocols of the ALPR systems are permitted to use it;

**n)** Ensuring that the program system has been developed to update to the system at a minimum of once every twenty-four hours;

**o)** Ensuring proper ALPR Data Sharing and Dissemination;

**p)** Ensuring proper retention;

**q)** Ensuring ALPR reads are retained for no longer than 180 days before being deleted from the system or as otherwise provided in Neb. Rev. Stat 60-3204 as may be amended. Hot list entries and reads involved in an active, ongoing criminal investigation shall be exempt;

**r)** Ensuring compliance with the Automatic License Plate Reader Privacy Act as may be amended.

## C. Use of ALPR System

**1.** Use of an ALPR is restricted to the purposes outlined below. Sarpy County Sheriff's Office members shall not use or allow others to use the equipment or database records for any unauthorized purpose.

**a)** An ALPR shall only be used for official law enforcement business;

**b)** An ALPR may be used in conjunction with any routine patrol operation or criminal investigation; reasonable suspicion, or probable cause is not required before using an ALPR;

**c)** Partial license plates and unique vehicle descriptions reported during an investigation should be entered into the ALPR system in an attempt to identify suspect vehicles;

**d)** No member of the Sarpy County Sheriff's Office shall operate ALPR equipment or access ALPR data without first completing department approved training;

**e)** If practical, the Deputy should verify an ALPR response through NCIC before taking enforcement action that is based solely on an ALPR alert. Once an alert is received, the operator should confirm that the observed license plate from the system matches the license plate of the observed vehicle. Before any law enforcement action is taken on an ALPR alert, the alert will be verified through NCIC inquiry via MDC or through dispatch. Deputies will not take law enforcement action that restricts the freedom of any individual based solely on an ALPR alert unless it has been validated. Because the ALPR alert may relate to a vehicle and may not relate to the person operating the vehicle, Deputies are reminded that they need to have reasonable suspicion and/or probable cause to make an enforcement stop of any vehicle. (Example: If a vehicle entered into the system because of its association with a wanted individual, Deputies should attempt to visually match the driver to the description of the wanted subject prior to making the stop or should have another legal basis for making the stop).

**f)** Hot Lists, designation of hot lists to be utilized by the ALPR system shall be made by the ALPR Administrator or his/her designee. Hot lists shall be obtained or compiled from sources consistent with the purposes of the ALPR system set forth in this policy. Hot Lists utilized by the Sarpy County Sheriff's Office's LPR system may be

updated by agency sources more frequently, such as NCIC data, therefore agency specific hot lists and NCIC data may not be the most current data available in real time. Occasionally, there may be errors in the LPR system's read of a license plate. Therefore, an alert alone shall not be a basis for law enforcement action (other than following the vehicle of interest). Prior to initiation of a traffic stop of a vehicle or other intervention based on an alert, Sarpy County Sheriff's Deputies shall take the following steps:

**(1)** Verification of status on a hot list. A Deputy must receive confirmation, from Sarpy County Communications or MDC, that the license plate is still stolen, wanted, or otherwise of interest before proceeding (absent exigent circumstances).

**(2)** Visual verification of license plate number. Deputies shall visually verify that the license plate of interest matches identically with the image of the license plate number captured (read) by the LPR, including both the alphanumeric characters or the license plate, state of issue, and vehicle descriptors before proceeding. Sarpy County Sheriff's Office Deputies alerted to the fact an observed vehicles license plate is entered as a Hot List plate (hit) in a specific BOLO list are required to make reasonable effort to confirm that a wanted person is actually in the vehicle and/or that a reasonable basis exists before the Deputy would have a lawful basis to stop the vehicle.

**(3)** Sarpy County Sheriff's Office Deputies will clear all stops from hot list alerts by indicating the positive ALPR hit in the call notes.

**(4)** All entries and updates of specific Hot Lists within the ALPR system will be documented by the requesting Sheriff's Office member within the appropriate report. As such, specific Hot Lists shall be approved by the ALPR Administrator before initial entry within the ALPR system. The updating of such a list within the ALPR system shall thereafter be accomplished pursuant to the approval of the member's immediate supervisor. The hits from these data sources should be viewed as informational, related solely to bring the Deputy's attention to specific vehicles that have been associated with criminal activity. All hot plates and suspect information entered into the ALPR system will contain the following information at a minimum:

**(a)** Entering Sheriff's Office member's name;

**(b)** Related case number;

**(c)** Short summary describing the nature of the originating case.

**(5)** No member of the Sarpy County Sheriff's Office shall operate ALPR equipment or access ALPR data without first completing Sarpy County Sheriff's Office approved training.

**(6)** To ensure proper operation and facilitate oversight of the ALPR system, all users will be required to have individual credentials for access and use of the system and/or data, which has the ability to be fully audited.

**D. Permitted/Impermissible Use**

**1.** The ALPR system and all data collected is the property of the Sarpy County Sheriff's Office. Department personnel may only access and use the ALPR system for official and legitimate law enforcement purposes consistent with this policy. Only department owned and issued devices will have access. The following uses of the ALPR system are strictly prohibited:

**a)** Invasion of Privacy: Except when done pursuant to a court order such as a search warrant, is a violation of this policy. To utilize the ALPR to record license plates except those of vehicles that are exposed to public view (e.g., vehicles on a public road or street, or that are on private property but whose license plate(s) are visible from a public road, street, or a place to which members of the public have access, such as the parking lot of a shop or other business establishment).

**b)** Harassment or Intimidation: It is a violation of this policy to use the ALPR system to harass and/or intimidate any individual or group.

**c)** Use based on protected characteristics: It is a violation of this policy to use the LPR system or associated scan files or hot lists solely because of a person's or group's race, gender, religion, political affiliation, nationality, ethnicity, sexual orientation, disability, or other classification protected by law.

**d)** Personal Use: It is a violation of this policy to use the ALPR system or associated scan files or hot lists for any personal purpose.

**e)** 1st Amendment Rights: It is a violation of this policy to use the LPR system or associated scan files or hot lists for the purpose or known effect of infringing upon First Amendment Rights. Anyone who engages in an impermissible use of the ALPR system or associated scan files, or hot lists may be subject to:

**(1)** Criminal prosecution;

**(2)** Civil liability, and/or;

**(3)** Administrative disciplinary action up to an including termination.

## E. Data Collection and Retention

**1.** The ALPR Administrator is responsible for ensuring the system and processes are in place for the proper collection and retention of ALPR data. ALPR data which is downloaded for a criminal investigation will be transferred from the device to a secure location in accordance with department digital evidence procedures.

**2.** All ALPR data downloaded shall be stored in accordance with established record retention schedules. Thereafter, ALPR data should be purged every 180 days, unless it has become, or it is believed it will become evidence in a criminal or civil action or is subject to a discovery request or other lawful action to produce records.

**3.** ALPR vendor, Flock Safety will store the data and ensure proper maintenance and security of data stored. Flock Safety will purge (hard delete) the data after (30) days. Data retrieved by the Sarpy County Sheriff's Office for investigative purposes will be maintained in accordance with department retention policy.

## F. Restrictions on use of ALPR Data

**1.** Information gathered or collected, and records obtained by Flock Safety cameras, or any other Sarpy County Sheriff's Office ALPR system will not be sold, accessed, or used for any other purpose other than legitimate law enforcement or public purposes.

## G. Accountability and Safeguards

**1.** All data will be closely safeguarded and protected by both procedural and technological means. The Sarpy County Sheriff's Office will observe the following safeguards regarding access to and use of stored data.

**a)** All non-law enforcement requests for access to stored ALPR data shall be processed in accordance with applicable law;

**b)** All ALPR data downloaded to the mobile workstation shall be accessible only through a login/password protected system capable of documenting all access of information by name, date, and time;

**c)** Persons approved to access ALPR data under these guidelines are permitted to access the data for legitimate law enforcement purposes only for a specific criminal investigation;

**d)** Such ALPR data may be released to other authorized and verified law enforcement officials and agencies for legitimate law enforcement purposes;

**e)** Every ALPR detection browsing inquiry must be documented by the associated case number and reason for the inquiry.

## H. Releasing ALPR Data

**1.** The ALPR data may be shared only with other law enforcement or prosecutorial agencies for official law enforcement purposes or as otherwise permitted by law.

**2.** The agency makes a written request for the ALPR data including:

**a)** The name of the agency;

**b)** The name of the person requesting it;

**c)** The intended purpose of obtaining the information.

**d)** The request is reviewed by the ALPR Administrator and approved before the request is fulfilled.

**3.** The approved request is retained and filed. Requests for ALPR data by non-law enforcement or non-prosecutorial agencies will be processed in accordance with records release policies.

## I. Training

**1.** The ALPR Administrator will ensure department members receive department approved training prior to using or accessing the ALPR system.